

2010 05 17

LAKEWOOD CITY COUNCIL MINUTES

Monday, May 17, 2010
City of Lakewood
City Council Chambers
6000 Main Street SW
Lakewood, WA 98499

CALL TO ORDER

Mayor Richardson called the meeting to order at 7:01 p.m.

ROLL CALL

Councilmembers Present: 6 – Mayor Douglas Richardson; Deputy Mayor Don Anderson; Councilmembers Mary Moss, Mike Brandstetter, Walter Neary and Claudia Thomas.

Councilmember Excused: 1 – Councilmember Jason Whalen.

FLAG SALUTE

The Pledge of Allegiance was led by Mayor Richardson.

REPORTS BY THE CITY MANAGER

City Manager Neiditz announced that a workshop on the Shoreline Master Plan update will be held on May 18, 2010 at Clover Park High School. He also announced that there will be an open house on May 20, 2010 regarding the Gravelly Lake Drive overlay project starting at 4:30 p.m.

City Manager Neiditz announced that the Washington State Department of Transportation hosted an open house regarding the Pt. Defiance Bypass project at the Clover Park Technical College which was attended by over 100 people.

City Manager Neiditz reported that the Kids Fishing Derby was well attended over the weekend which Councilmember Brandstetter participated in. Councilmember Brandstetter added that this event was the largest event with the number of volunteers who helped. He complimented the Parks Department and Washington Department Fish and Wildlife.

City Manager Neiditz reported on the 29th annual Peace Memorial service he attended in Washington, DC with the Mayor and Deputy Mayor. He commented on the service in which President Obama spoke at. He stated that the Lakewood's delegation attended the candlelight vigil that was held.

Lakewood City Council Minutes

-2-

May 17, 2010

PROCLAMATIONS AND PRESENTATIONS

Mayor Richardson called on Ms. Jan Rich who commented on the activities planned for the Lakewood Senior Center open house on June 3, 2010.

Proclamation declaring May 19, 2010 as Kinship Caregiver Day.

Mayor Richardson presented a proclamation declaring May 19, 2010 as Kinship Caregiver Day to Ms. Edith Owen, Coordinator of the Pierce County Relatives Raising Children, and Ms. Neuman, a grandmother raising two grandchildren.

Proclamation declaring June 4 and 5, 2010 as Lakewood Relay for Life Days.

Councilmember Brandstetter presented a proclamation declaring June 4 and 5, 2010 as Lakewood Relay for Life Days to Ms. Sharon Ness, Event Chair of the Relay for Life Survivorship.

Proclamation declaring the week of May 17 – 21, 2010 as Public Service Recognition Week.

Councilmember Neary presented a proclamation declaring the week of May 17 – 21, 2010 as Public Service Recognition Week to Officer Brian Wurts, President of the Lakewood Police Guild, Debi Young, Human Resources Director representing AFSME and Teamsters and Alice Bush, City Clerk, representing non-represented employees.

Proclamation declaring the week of May 16 – 22, 2010 as National Public Works Week.

Deputy Mayor Anderson presented a proclamation declaring the week of May 16 – 22, 2010 as National Public Works Week to Public Works Director Don Wickstrom.

PUBLIC COMMENTS

Speaking before the Council were:

Dennis Haugen, Lakewood resident, spoke about an Economic Development meeting he attended and noted that when traffic is impeded, it deters middle class families from purchasing homes in Lakewood. He encouraged the Council to read the book The Manchurian President.

Sisay Telahun, Lakewood resident, commented that the Seattle City Council approved the boycott of Arizona Senate Bill 1070 and that the Tacoma City Council will be considering a boycott tomorrow. He asked what the Lakewood City Council's position is on this matter.

Lakewood City Council Minutes

-3-

May 17, 2010

Robert Keppka, Lakewood resident, spoke about a road trip he took in southern Mexico and commented on a solution for red light runners. He indicated that the green light starts to blink before the light turns amber.

Ken Severe, Lakewood resident, expressed concern about the Council Study Sessions that are held at the Police Station and the lack of parking spaces for the public. He also commented that the acoustics in the room makes it difficult to hear.

Glen Spieth, Lakewood resident, expressed concern about the difficulty of hearing the discussion at Council meetings because of the acoustics at the Police Station. He indicated that it is his hope that Lakewood does not boycott Arizona's Senate Bill. He questioned the City's requirements on e-verify for printing service from a brochure company that the Historical Society contracts with to distribute their brochures.

C O N S E N T A G E N D A

- A. Approval of the minutes of the City Council meeting of May 3, 2010.
- B. Approval of the minutes of the City Council Study Session of May 10, 2010.
- C. Approval of payroll check numbers 2, 3, 220, 112006 to 112029 and direct deposit check numbers 40142 to 40399, in the amount of \$1,149,885.16 for the period April 16 – 30, 2010.
- D. Approval of claim voucher numbers 900187 and 56245 to 56347, in the amount of \$761,358.16 for the period ending May 6, 2010.
- E. Items Filed in the Office of the City Clerk:
 - 1. Citizens' Transportation Advisory Committee Special Meeting minutes of April 13, 2010 and regular meeting minutes of April 27, 2010.
 - 2. Lakewood Arts Commission meeting minutes of April 5, 2010.

3. Redevelopment Advisory Board meeting minutes of April 13, 2010.
4. Planning Advisory Board meeting minutes of March 3, 2010 and April 21, 2010.
5. Special Joint Planning Advisory Board and Citizens' Transportation Advisory Committee meeting minutes of April 21, 2010.

COUNCILMEMBER THOMAS MOVED TO ADOPT THE CONSENT AGENDA AS PRESENTED. SECONDED BY COUNCILMEMBER MOSS. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

Lakewood City Council Minutes

-4-

May 17, 2010

R E G U L A R A G E N D A

APPOINTMENTS

Motion No. 2010-17 appointing Bethene Campbell to serve on the Landmarks and Heritage Advisory Board for a three-year term.

COUNCILMEMBER NEARY MOVED TO CONFIRM THE APPOINTMENT OF BETHENE CAMPBELL TO SERVE ON THE LANDMARKS AND HERITAGE ADVISORY BOARD FOR A THREE-YEAR TERM. SECONDED BY COUNCILMEMBER BRANDSTETTER. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

UNFINISHED BUSINESS

None.

NEW BUSINESS

Motion No. 2010-18 authorizing the execution of an agreement with the City of Wapato, in the amount of \$306,000, for jail services from January 1, 2010 through December 31, 2010.

COUNCILMEMBER BRANDSTETTER MOVED TO authorize the execution of an agreement with the city of wapato, in the amount of \$306,000, for jail services from january 1, 2010 through december 31, 2010. SECONDED BY COUNCILMEMBER NEARY. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

BRIEFING BY THE CITY MANAGER

City Manager Neiditz commented that the Puget Sound Regional Council General Assembly meeting will be held on Thursday, May 20, 2010 and that Councilmember Whalen will be attending that meeting.

City Manager Neiditz reported that Officer Chris Lawler has been appointed to Lieutenant effective June 1, 2010, and will be responsible for investigations and will serve as the Police Department's Public Information Officer.

City Manager Neiditz then noted that he and Deputy Mayor Anderson met with the Department of Defense and Office of Economic Adjustment to discuss transportation issues and school issues on the military bases.

Lakewood City Council Minutes

-5-

May 17, 2010

Update on long term financial plan.

Assistant City Manager Halladay presented a PowerPoint presentation of a long term financial plan for the City's finances. He explained that the goal is to identify structure deficiencies and long term trends. He reviewed proposed revenue and expenditure projections to 2012. He then reviewed three scenarios representing a speedy economic recovery, a path of least resistance and no growth. He then reviewed the Street Funds and the vehicle/equipment and facility depreciation funds.

Councilmember Neary suggested that there be more explanation of the three scenarios and that this information be shared with the Citizens Advisory Boards and Committees.

City Manager Neiditz distributed copies of the narrative to accompany the PowerPoint presentation.

Update on e-verify.

In response to comments about e-verify, City Manager Neiditz presented some background information about the City's e-verify policy and that, for the most part, it has been working successfully. He reported that there had been some challenges with the contracts with the Tacoma Visitor and Convention Bureau (VCB), Lakewold Gardens and the Lakewood Historical Society. He added that Pierce County's e-verify policy is less restrictive than the City and the federal government may have some exceptions.

Mayor Richardson noted that commercial products purchased off the shelf is not subject to e-verify. Deputy Mayor Anderson commented on Arizona's e-verify program which relates to employers. Councilmember Brandstetter questioned how the VCB could be exempt from e-verify and considered to be a "quasi-government" non-profit, when their funding sources are from public agencies (cities, towns and county), and non-profit human services agencies who could also be receiving their funding from public agencies (cities, towns and county) are subject to e-verify.

Mayor Richardson noted that the intent of the Council was to apply e-verify to all contractors and subcontractors.

City Manager Neiditz requested an Executive Session to discuss the performance of a public official.

CITY COUNCIL COMMENTS

Councilmember Moss commented on an Armed Forces Day event she attended and her visit of the Museum of Flight.

Lakewood City Council Minutes -6- May 17, 2010

Councilmember Moss commented that she and Councilmember Thomas attended the McDonald's grand opening in DuPont.

Councilmember Brandstetter asked Councilmembers to consider continuing the discussion about the Comprehensive Plan amendment process and the timeline for adoption. Mayor Richardson indicated that the Council can do so.

Councilmember Brandstetter asked the Council to consider designating time to discuss the International Building Code changes and other parts of the building codes.

Councilmember Thomas thanked the Police Department for participating in the national memorial.

Deputy Mayor Anderson noted that President Obama recognized Lakewood's families and that Attorney General Eric Holder gave a moving speech at the candlelight vigil. He asked if the video could be obtained on the Attorney General's speech.

Mayor Richardson announced that the Memorial Day event will be held at Mountain View Cemetery and encouraged Councilmembers to attend. He asked that the event be publicized on the City's website.

Mayor Richardson called on Assistant City Manager Bugher who provided a report on the Friday, May 14, 2010 "Coffee with the Mayor" meeting.

Executive Session

Mayor Richardson announced that Council will recess into Executive Session for approximately 10 minutes to discuss the performance of an elected official.

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Council recessed into Executive Session at 9:10 p.m. and reconvened at 9:20 p.m.

ADJOURNMENT

There being no further business, the meeting adjourned at 9:20 p.m.

DOUGLAS G. RICHARDSON, MAYOR

ATTEST:

ALICE M. BUSH, MMC
CITY CLERK